

Contracts
Herrin v. Sutherland
74 Mont. 587, 241 P. 328 (1925)

Keyword Subject

Trespass to Land

Facts

Plaintiff alleged that Defendant, while hunting in an adjoining property, fired at water fowl that were flying over both properties. Plaintiff sued Defendant for nominal damages in trespassing in the space over Plaintiff's property

Procedural History

Trial Court: In favor of Plaintiff

Appeal: In favor of Plaintiff

Issue

Holding:

Principle

Reasoning

Separate Opinions

Notes